BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive • Stockton, CA 95204
Telephone: (209) 801-4442 • E-mail: bnn.cdl@gmail.com

CONFIDENTIAL SETTLEMENT COMMUNICATION
Protected by Cal. Evid. Code § 1152 and Fed. R. Evid. 408

July 20, 2026

VIA ELECTRONIC MAIL ONLY

The RK Logistics Group, Inc.
Attn: Legal Department / Human Resources
47020 Kato Road
Fremont, CA 94538
E-mail: info@rklogisticsgroup.com

Re: Pre-Filing Demand for Settlement -- Newanforbi v. The RK Logistics Group, Inc. Unlawful Use of California Sex Offender Registry Information for Employment in Violation of Cal. Penal Code § 290.46(j)(2)(E); Wrongful Termination; ICRAA Violations InfoMart Order No. 15780719 | Termination Date: July 15, 2026 | Demand: $85,000.00

To the RK Logistics Group, Inc. Legal Department:

I write, pro per, to demand pre-litigation settlement of claims arising from The RK Logistics Group, Inc.'s ("RK Logistics") role in the unlawful termination of my employment based on my registration in the California Sex Offender Registry. The background check that led to my termination was ordered under RK Logistics' own billing code and client package, and the resulting screening status -- "NEEDS APPROVAL, PER CLIENT CRITERIA" -- reflects criteria that RK Logistics itself established. Every criminal history search performed came back clean; the sole adverse item was the registry listing.

A complete Draft Complaint for Damages, prepared for filing in the Superior Court of California, County of Alameda, has been finalized and names The RK Logistics Group, Inc. and Randstad US, LLC as defendants, asserting six causes of action and demanding trial by jury. I am currently appearing in pro per and am actively seeking counsel on a contingency basis. Once retained, RK Logistics becomes liable for counsel's fees under Penal Code section 290.46, subdivision (j)(5), and the ICRAA, in addition to all other relief. Resolving this matter before that retention eliminates that exposure.

THE DOCUMENTARY RECORD

- June 30, 2026: I applied via Indeed for the "Class C Driver - Bobtail" position posted directly by RK Logistics Group, Inc. ("RK Logistics") for its Newark, California facility. RK Logistics sent me

an automated SMS acknowledgment the same evening: "Thanks for your interest in RK Logistics Group, Inc jobs."

• July 1, 2026: Within approximately 12 hours, Randstad recruiter Dishon Bryant contacted me, explicitly referencing the RK Logistics application. The following day, Bryant referred me directly to Danyea Watkins, identified as the "Site Manager" embedded at RK Logistics' Fremont facility.

• July 7, 2026: Danyea Watkins -- functioning inside RK Logistics' own facility -- emailed me requesting completion of an MVR authorization form, confirming placement in a CDL commercial driving role at RK Logistics. At all relevant times I held a valid California Class C driver's license, and, while the physical card was in transit from the DMV, a temporary Class C license and DMV receipts of procurement establishing my licensure to operate the vehicle the position required.

• The background check submitted that day was ordered under Billing Code "RK LOGISTICS," Business Unit "RIS RK Logistics Fremont," and Client Package "RK Logistics" -- confirming that RK Logistics, as the client, configured and controlled the screening criteria applied to my candidacy.

• July 13, 2026: The InfoMart report (Order No. 15780719) showed seven separate county and federal criminal history searches all returning "No Record," and negative results on the OFAC, OIG, and GSA exclusion lists. The sole adverse item in the entire report was the California Sex Offender Registry listing. The report's status -- "NEEDS APPROVAL, PER CLIENT CRITERIA" -- reflects RK Logistics' own predetermined screening criteria, not an individualized assessment.

• July 15, 2026: I was terminated by telephone, only two business days after the pre-adverse notice, without any written adverse action notice.

THE LAW

California Penal Code section 290.46, subdivision (j)(2)(E), categorically prohibits the use of sex offender registry information "for purposes relating to ... Employment." The statute applies with equal force to the client company that sets the screening criteria as to the staffing agency that executes the termination. RK Logistics' own billing designation and client-criteria flag on the InfoMart report establish that RK Logistics -- not Randstad alone -- determined the outcome of my candidacy.

No exception under subdivision (j)(1) applies. A bobtail CDL driving assignment at a logistics facility does not implicate any identified person at risk, and RK Logistics never asserted otherwise.

Penal Code section 290.46, subdivision (j)(5), makes RK Logistics liable for actual damages, treble damages (minimum $250), attorney's fees, exemplary damages, and a civil penalty of up to $25,000. Independent claims lie under the Investigative Consumer Reporting Agencies Act (Civ. Code § 1786 et seq.), under Tameny v. Atlantic Richfield Co. (1980) 27 Cal.3d 167 for wrongful termination in violation of fundamental public policy, under Evidence Code section 669 for negligence per se, and under Business & Professions Code section 17200 for unlawful business practices.

This case will not turn on credibility. The InfoMart report's own billing and client-criteria fields, RK Logistics' own recruiting SMS, and the Randstad-to-RK Logistics referral chain are documentary, not testimonial, and are in my possession.

THE DEMAND

To resolve all claims described herein without the necessity of litigation, I demand the following:

SETTLEMENT PAYMENT: $85,000.00 (Eighty-Five Thousand U.S. Dollars)

- Payable by check or electronic transfer to Brendan Ngehsi Newanforbi, payment instructions to follow upon acceptance;
- Written confirmation that RK Logistics has issued binding guidance to its hiring managers, site managers, and staffing-agency partners that California Sex Offender Registry information shall not be used, directly or indirectly, as a basis for any employment or placement decision at any RK Logistics facility;
- Confirmation that all internal references to the July 15, 2026 termination have been corrected to reflect that Plaintiff is eligible for rehire;
- A written commitment that any future employer or agency inquiry regarding this assignment will be answered only with dates of assignment and "eligible for rehire" status;
- Confidentiality of the settlement amount only; the fact of settlement and non-monetary terms may be disclosed. I will not agree to any non-disparagement clause or to any release broader than the claims arising from the July 15, 2026 termination.

DEADLINE FOR RESPONSE

RK Logistics must respond in writing by e-mail to bnn.cdl@gmail.com on or before 5:00 p.m. Pacific Time on August 2, 2026. Absent a written acceptance of these terms, or a good-faith counter-offer, by that deadline, the Draft Complaint will be filed in Alameda County Superior Court without further notice.

SETTLEMENT-COMMUNICATION PROTECTION

This letter is offered in compromise of a disputed claim and is inadmissible to prove liability under California Evidence Code section 1152 and Federal Rule of Evidence 408. Nothing in this letter limits my right to introduce the underlying documentary evidence at trial.

RESERVATION OF RIGHTS

Nothing in this letter waives, releases, or limits any claim, right, or remedy. All claims, rights, and remedies are expressly reserved. This letter is not, and shall not be construed as, an offer to settle for any amount less than that stated herein, nor as an admission of fact, law, or comparative fault.

I look forward to your prompt response.

Very truly yours,

/s/ BRENDAN NGEHSI NEWANFORBI
BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

Method of delivery: Electronic mail only.
cc (by e-mail): info@rklogisticsgroup.com